

25STCV29639 25STCV29639

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-09-24

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Case Number: 25STCV29639 Hearing Date: September 24, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September
24, 2026

Case Name: Soliz

v. American Honda Motor Co., Inc.

Case No.: 25STCV29639

Motion: Motion

to be Relieved as Counsel

Moving Party: Counsel for Plaintiff Adela Soliz

Opposing Party: None

Tentative

Ruling: The

Motion to be Relieved as Counsel is denied.

Plaintiff's

counsel –Mani

Arabi– seeks to be relieved as counsel of record for Plaintiff Adela Soliz. No
opposition was filed.

The motion to be relieved as counsel is denied.

Discussion

An attorney is entitled to withdraw upon the consent of the client, or without that consent if approved by the court. (Code Civ. Proc., § 284; Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) In the latter case, counsel must make a motion to be relieved as attorney of record. The motion must be made using mandatory forms: Notice of Motion and Motion to be Relieved as Counsel – Civil (MC-051), Declaration (MC-052), and Proposed Order (MC-053). (Cal. Rules of Court, rule 3.1362, subd. (a), (b), (e).)

The declaration accompanying the motion to be relieved as counsel must state “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362, subd. (b).)

The notice to the client must be delivered by personal service, electronic means, or mail. If it is done via mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration confirming the service address to be the most current residence or that it is the client’s last known address, and the attorney has been unable to locate a more current address. (Cal. Rules of Court, rule 3.1362, subd. (d)(1)(A)-(B).) If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client’s current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).)

Here,

Attorney Arabi has complied with the Rules of Court by filing forms MC-051, MC-052, and MC-053.

Attorney Arabi has also submitted a supporting declaration that adequately explains the request to be relieved as counsel. Counsel states that there has been a breakdown of the attorney-client relationship.

However, Counsel's
proof of service does not reflect that Plaintiff has been served. (Proof of
Service)

Thus, the
Court denies Counsel's motion to be relieved as counsel.